

HCL EMPLOYEES' (DEATH BENEFIT) RULES, 1977

HINDUSTAN COPPER LIMITED

□ CALCUTTA

No. PERS/11.9.1

November 2, 1977

OFFICE ORDER

Sub: HCL Employees' (Death Benefit) Rules, 1977

Attention is invited to Circular No. PA/12.5 dated 19.8.77 notifying the rates of death benefit.

Copies of the detailed rules incorporating the procedure for payment of death benefit etc. are enclosed.

This issues with the approval of Chairman.

Sd/-

□(K.V.RAMACHANDRAN)

□Personnel & Industrial Relations Manager.

[Authority: Board Resolution, Item No. 78-1-7]

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HCL EMPLOYEES (DEATH BENEFIT) RULES, 1977

1.Aim: To provide security benefit to dependents of employees who die while in the service of the company.

2. Scope:

2.0 These rules shall cover all employees of the Company who have (a) completed one year of continuous service and (b) have been admitted to the membership of the Provident Fund constituted for the establishment of Hindustan Copper Limited.

2.1 The Company shall not pay any death benefit under these rules if death occur under circumstances in which:

- a) The Company is liable to pay compensation under the Workmen's Compensation Act, 1923 or
- b) Compensation at par with benefits admissible under the Workmen's Compensation Act, 1923 is payable to an employee drawing salary/ wages not exceeding Rs. 1000/- although he is not covered by the provisions of the Workmen's Compensation Act, 1923 or
- c) Compensation is payable under the Group Personal Accident Policy subscribed to by the Company.

3. Benefits:

3.0 The following death benefit shall be payable to dependents of an employee who dies while in the service of the Company.

* Wages/salary of the employee ☐	Amount of Death Benefit payable
☐	
☐ 801 - 900 ☐	Rs. 20,000/-
☐ 901 - 1000 ☐	Rs. 22,250/-
1001 - 1500 ☐	Rs. 37,100/-
1501 - 2000 ☐	Rs. 49,400/-
2001 & above ☐	Rs. 61,750/-

NB: Wages shall be computed as per provisions of the Workmen's Compensation Act, 1923.

*** Amended in terms of Office Order No. PERS/11.9.1 dated 2.1.1985**

4. Nomination for payment of Death Benefit:

4.0 The Death Benefit admissible under these rules shall be paid to the nominee of the employee who is entitled to receive Provident Fund in the event of the death of the employee.

4.1 In case an employee has nominated more than one person in the prescribed nomination form for receiving Provident Fund, the Death Benefit payable under these rules shall be shared by the nominees in the same proportion as indicated in the nomination form.

5.Application for Death Benefit:

Application for the grant of Death Benefit shall be submitted to the Head of the Establishment, or any other officer as may be notified by the Company, under whom the employee was working at the time of his death. Applications for grant of Death Benefit should normally be submitted within 30 days of death.

6.Procedure for dealing with applications:

On receipt of the application for Death Benefit the Head of the Establishment, or any officer authorised by him, may, if found necessary, call for evidence or documents or hold enquiry to satisfy himself in respect of the bonafides of the claim, in all respects, before authorising payment.

7. Limitations:

The Death Benefit admissible under these rules shall not be payable if the death of the employee has occurred due to (a) riotous or disorderly conduct on his part (b) any act of violence on his part, or (c) intentional self injury or suicide. The Company, may, at its discretion, disallow Death Benefits in cases of deaths arising from war or invasion or unforeseen natural calamities.

8. Interpretation:

In the event of any dispute as to the interpretation of these rules the decision of the Chairman of the Company shall be final and binding.

9. Tenure:

9.0 These rules shall come into force with effect from 8th August, 1977.

9.1 The Company reserves the right to amend, alter or withdraw the above rules.

HINDUSTAN COPPER LIMITED
□ HEAD OFFICE
□ CALCUTTA

NO.PERS/11.9.1

2nd January, 1985

OFFICE ORDER

Sub: HCL Employees' (Death Benefit) Rules, 1977

It has been decided to increase the amount of benefit payable under HCL Employees' (Death Benefit) Rules, 1977. Accordingly, the table given under Rule 3 of the HCL Employees' (Death Benefit) Rules, 1977 is amended as under:

Wages/salary of the employees	Amount of Death Benefit payable
☐ 801 - 900	Rs.20,000/-
☐ 901 - 1000	Rs.22,250/-
☐ 1001 - 1500	Rs.37,100/-
☐ 1501 - 2000	Rs.49,400/-
☐ 2001 & above	Rs.61,750/-

This amendment shall come into force w.e.f.1.9.1983.

This issues with the approval of competent authority.

Sd/-
(R.L. SHARMA)
Dy.General Manager (P)

(Authority: Board's approval vide Item No. 131-1-8 dated 10th December, 1984)

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